

Ukrainian status in a case for congressional action

Executive summary

The U.S. offered protection to Ukrainians fleeing Russia's invasion, a conflict that has inflicted tens of thousands of civilian casualties and caused widespread destruction of homes, schools and critical infrastructure. Families who entered **before 16 August 2023** have been able to seek Temporary Protected Status and, if eligible, re-register under the current extension. Even so, they must navigate re-registration periods and long processing times that can run 14-16 months; during these delays, work authorization and other benefits can lapse, and some applicants fall out of lawful status despite having complied with every requirement.

Ukrainians arriving **after 16 August 2023** face an even more precarious situation: they are ineligible for TPS and must rely on re-parole or other humanitarian pathways that currently take 16 months to adjudicate. A recent 4-month pause in processing applications worsened backlogs. If a person's parole expires before USCIS grants new status, that individual loses lawful stay and work authorization and may be placed in removal proceedings.

Together, these circumstances mean that Ukrainian families, whether early arrivals or more recent arrivals, face protracted legal uncertainty even though they fled the same ongoing war. The U.S. welcomed them on humanitarian grounds; ensuring that all of them can maintain lawful status and stability would align with that commitment.

The crisis is compounded by USCIS's overwhelming backlog of **11.3 million pending applications**. Approximately **263,666** applications from Ukrainians are stalled in the system, leaving applicants unable to secure work authorization or extend their lawful stay despite fleeing a devastating war. There are approximately **155,587** Ukrainians outside temporary protected status who remain in legal limbo. All evidence supporting these findings is presented below. Among potential legislative remedies, the Ukrainian Adjustment Act represents one approach to address these challenges. This proposal has attracted considerable public engagement, with over **47,000 individuals signing** a petition in support of measures that would allow Ukrainians to maintain lawful presence in the United States (<https://www.change.org>).

TABLE OF CONTENTS

Ukrainian status in a case for congressional action	1
Executive summary	1
TABLE OF CONTENTS	2
Problem Overview	3
I. Background on Temporary Protected Status (TPS)	3
II. Impact on Ukrainians who arrived after 16 August 2023	3
III. Ukrainians outside temporary protected status	3
IV. Consequences of processing delays and TPS ineligibility	4
V. Pending applications and processing delays	5
VI. Current USCIS processing crisis	6
VII. Economic benefits of resolving Ukrainian immigration status	6
VIII. Historical precedent for congressional action	7

Problem Overview

I. Background on Temporary Protected Status (TPS)

The United States first designated Ukraine for Temporary Protected Status (TPS) due to Russia's invasion. On 10 January 2025 the U.S. Department of Homeland Security extended TPS for Ukraine for 18 months. The extension continues to protect people who already have TPS or who filed during the current term; it allows them to remain and work in the U.S. until 19 October 2026 (<https://www.dhs.gov/>) and (<https://www.uscis.gov/>). However, this was not a redesignation. TPS remains available only to Ukrainian nationals who arrived on or before **August 16, 2023** (<https://www.dhs.gov/>). Individuals who entered the U.S. after that date cannot apply for TPS. The re-registration period for existing beneficiaries runs from 17 January 2025 through 18 March 2025 (ukrainetaskforce.org)

On 10 January 2025 the DHS notice explained that the extension is warranted due to conditions resulting from the expansion of the Russian military invasion into Ukraine, characterized as the largest conventional military action in Europe since World War II. The notice cites Russia's expanded military invasion leading to high numbers of civilian casualties and reports of war crimes and crimes against humanity committed by Russian military forces and officials, creating a humanitarian crisis with damage to civilian infrastructure that has left many without electricity or access to medical services. **These conditions prevent Ukrainian nationals and habitual residents from safely returning to Ukraine** (<https://www.dhs.gov/>).

II. Impact on Ukrainians who arrived after 16 August 2023

Because DHS did not redesignate TPS, thousands of Ukrainians who arrived after **16 August 2023** are ineligible to apply. Parole usually lasts two years; at the end of the term people must either obtain another status (such as asylum or TPS) or apply for **re-parole** (Form I-131) to remain lawfully in the country. USCIS cannot predict how long these applications will take to adjudicate; it acknowledges that Form I-131 applications (for parole and other travel documents) can **take 14 months** and that TPS (I-821) cases can take up to **16 months** (<https://egov.uscis.gov/processing-times/>). The long processing times mean that a person's original parole often **expires before a decision** is made on re-parole or TPS.

Further compounding delays, USCIS issued a policy on **14 February 2025** pausing final decisions on applications filed by parolees. During this "hold" officers could work on cases but could not issue approvals or denials. Processing resumed only after **9 June 2025**, when the agency was directed to continue adjudications (ukrainetaskforce.org). This nearly **4-month pause** exacerbated backlogs and left many Ukrainians without timely decisions on re-parole and work authorization.

III. Ukrainians outside temporary protected status

Official data show the scale of Ukrainians who remain outside the protection of Temporary Protected Status (TPS). USCIS reports that **259,287** Ukrainians had entered the United States under the Uniting for Ukraine parole program by 9 March 2025 ([Parolee benefit tracking DHS 3-25.pdf](#)). In contrast, the Federal Register notice extending TPS for Ukraine

explains that only **about 103,700** Ukrainians are current TPS beneficiaries and eligible to re-register during the 2025 extension under this program (<https://www.federalregister.gov/>). This means that **approximately 155,587** Ukrainian parolees cannot apply for TPS under the existing designation, even though the war that forced them to flee continues.

Total arrived 259,287 – Eligible to re-register 103,700 = Ukrainians outside temporary protected status **155,587**

This number is roughly equal to the population of a mid-sized U.S. city such as Savannah, Georgia, which is about 148,808, or Springfield, Massachusetts, which is about 155,559. Presenting this disparity underscores the urgent need for policy solutions that recognize the reality of ongoing hostilities in Ukraine and ensure that those who sought safety here are not left without protection.

IV. Consequences of processing delays and TPS ineligibility

Once a parole period expires, the individual is no longer in an authorized period of stay unless they have some other immigration status or a pending application for such status. USCIS confirms that when parole expires and no other status exists, the person loses work authorization, may lose benefits and could be placed in removal proceedings (<https://www.uscis.gov/>). Because **re-parole and TPS processing times can exceed a year, many Ukrainians who filed promptly still saw their initial parole expire before USCIS could grant new status.**

As of **19 August 2025**, the situation is therefore stark:

TPS cut-off. No redesignation means that Ukrainians who arrived **after 16 August 2023 cannot apply for TPS**. Even though the war continues and conditions make a return unsafe, these individuals have no protective status available (<https://www.dhs.gov/>).

Re-parole delays. Re-parole applications are processed by USCIS with estimated times of **14 months** (<https://egov.uscis.gov/processing-times/>). There was a **4 month period** in 2025 when USCIS was not issuing decisions (<https://justiceactioncenter.org/pdf>) and (<https://ukrainetaskforce.org/>).

Loss of legal status. When parole expires before re-parole is granted, individuals lose their authorized stay and work eligibility (<https://www.uscis.gov/applications>). **They become undocumented not because they failed to comply with the law but because processing delays and the lack of TPS redesignation leave them no legal pathway.**

180-day filing window. USCIS limits renewals to a very narrow timeframe: **applicants are told not to file more than 180 days before their current period of parole or EAD expires.** The Form I-131 instructions warn that re-parole requests submitted earlier “may be rejected or denied without refunding the filing fee” (<https://www.uscis.gov/i-131>). The Form I-765 page gives similar guidance for EAD renewals, advising applicants to wait until they are within 180 days of expiration (<https://www.uscis.gov/>). By confining people to a six-month filing window while simultaneously acknowledging 14- to 16-month processing times, **the policy**

virtually guarantees that many will lose lawful status and work authorization long before USCIS can adjudicate their cases.

Ukrainians losing status daily. Due to bureaucratic limbo, an average of **201** Ukrainians fall out of legal status every single day, through no fault of their own.

V. Pending applications and processing delays

As of March 9, 2025, USCIS reported significant backlogs affecting Ukrainian nationals: **90,667** pending TPS applications (Form I-821), **116,863** pending parole or travel document requests (Form I-131), and **56,136** pending Employment Authorization Document applications (Form I-765) ([Parolee benefit tracking DHS 3-25.pdf](#)). Combined, approximately **263,666** applications remain in administrative limbo.

The government required current TPS beneficiaries to re-register between January 17 and March 18, 2025, but tens of thousands of Ukrainian parolees were ineligible to file because they arrived after the August 16 cut-off (<https://www.uscis.gov/>); existing TPS beneficiaries were required to file in order to maintain protection. However, adjudication times remain lengthy, compounding the problem, USCIS placed a freeze on adjudications, a nearly 4-month pause that stalled both TPS and re-parole applications.

Table 1. Impact of pending applications and processing times

Application form	Number of pending applications	Processing times	Approx. Estimated decision (if eligible)
Temporary protected status (TPS) (Form I-821)	90,667	16 mos + 4 mos delay	~September 2026 – ~November 2026
Parole or travel document (Form I-131)	116,863	14 mos + 4 mos delay	Case-specific
Employment Authorization Document applications (Form I-765)	56,136	~ 4 mos	Case-specific
Total pending	263,666		

Approximately **263,666** applications from Ukrainians are stalled in the system, leaving applicants unable to secure work authorization or extend their lawful stay despite fleeing a devastating war. Most TPS applicants probably will not receive decisions until late 2026, and many parolees awaiting re-parole are likely to face similar timelines. Those who arrived after the 16 August 2023 cut-off cannot apply for TPS at all, giving them no clear path to lawful status. These people now face prolonged uncertainty and hardship even though they have complied with every procedural requirement.

VI. Current USCIS processing crisis

Recent USCIS data, summarized by Boundless Immigration, show a severe processing crisis that directly harms Ukrainian applicants and all others seeking immigration benefits (<https://www.boundless.com/>). In the second quarter of FY 2025 the agency completed only 2.7 million cases, an 18 percent drop from the previous year, while its **pending caseload climbed to a record 11.3 million cases**, the highest level in at least a decade. For Ukrainians every core form is now affected, including I-131 (parole and travel documents), I-821 (Temporary Protected Status), and I-765 (employment authorization). Pending I-765 applications rose 87 percent in one quarter, total pending I-765s exceed 2 million, and the share of I-765s stuck **beyond normal timeframes grew nearly 181 percent**.

Processing times have spiked across the board. USCIS has also reported a “frontlog” of more than **34 000 unopened cases**, evidence that the agency cannot even start new filings promptly.

This system breakdown leaves Ukrainian families who sought protection in prolonged uncertainty. Without swift congressional action and additional resources for USCIS, backlogs will continue expanding, leaving hundreds of thousands of applicants, including war-displaced Ukrainians, without resolution despite having valid claims for protection, work authorization, and travel documents.

VII. Economic benefits of resolving Ukrainian immigration status

While Ukrainian immigrants face uncertainty and delays in processing their applications, it's important to recognize the substantial economic benefits that resolving these issues would bring to the United States. According to the Congressional Budget Office's comprehensive 2024 analysis, the recent immigration surge delivers substantial positive economic benefits to the United States (<https://www.cbo.gov/>). The surge of 8.7 million additional immigrants from 2021-2026 **reduces federal deficits by \$0.9 trillion over the 2024-2034 period**, demonstrating a strongly net-positive fiscal impact. Immigrants contribute **\$1.2 trillion** in federal revenues while adding only **\$0.3 trillion** in mandatory spending and interest costs. The revenue boost grows significantly over time, reaching **\$167 billion annually** (2.2% of total federal revenues) by 2034. Directly, immigrants in the surge population pay \$788 billion in income and payroll taxes over the decade, including **\$345 billion** in income taxes and **\$443 billion** in payroll taxes, with **\$348 billion** flowing specifically into Social Security trust funds.

The economic growth impact is equally impressive, with the immigration surge boosting total nominal GDP by **\$8.9 trillion** over the 2024-2034 period and **increasing GDP by 3.2%** in 2034 compared to what it would have been without immigration. This expansion stems from a larger, more productive workforce, increased consumer demand, greater business and residential investment, and enhanced innovation from the estimated **3%** of immigrant adults working in STEM fields. The broader economic effects generate an additional \$387 billion in tax revenues through increased business activity, higher corporate profits, and innovation-driven productivity gains. By expanding the labor force by 2027 and contributing to long-term productivity growth, this immigration surge serves as a powerful economic engine that generates substantial tax

revenues, reduces federal deficits, and strengthens America's fiscal sustainability and global competitiveness.

Demographic data further underscores the scale of Ukrainian contributions. According to USCIS application receipts, Ukrainians have filed large numbers of work authorization requests (Form I-765: 389,595 applications), travel documents (Form I-131: 127,833 applications), and Temporary Protected Status applications (Form I-821: 178,922 applications). These filings reflect a population that is overwhelmingly of working age: more than 350,000 applications come from individuals between ages 21 and 50, the prime years of labor force participation ([Parolee benefit tracking DHS 3-25.pdf](#)).

However, these economic benefits can only be fully realized when immigrants have legal status and work authorization. Delayed and unprocessed applications for TPS, parole extensions, and employment authorization prevent Ukrainian immigrants from contributing their full economic potential, representing lost tax revenue and productivity for the United States.

VIII. Historical precedent for congressional action

Congress has a well-established precedent of enacting adjustment legislation to provide stable legal status to refugees who arrived under temporary or parole authority during humanitarian crises.

- Displaced Persons Act of 1948 (<https://www.uscis.gov/>)

Following World War II, Congress addressed the crisis of nearly 7 million displaced persons in Europe by enacting the first specific refugee act. Despite working within existing quota constraints, the United States successfully admitted and integrated more than 350,000 displaced persons. These refugees were required to secure housing and employment that would not displace American workers, demonstrating Congress's ability to balance humanitarian needs with economic concerns.

- Indochinese Refugee Adjustment (1977) (<https://www.uscis.gov/>)

When the Vietnam War ended in 1975, approximately 130,000 Southeast Asian refugees entered the United States through the Attorney General's parole authority, similar to the mechanism used for Ukrainian parolees today. Recognizing that these refugees could not safely return to their homeland, Congress enacted legislation in 1977 allowing Southeast Asian refugees who had entered through parole authority to adjust to lawful permanent resident status. This action provided stability to refugees who had supported U.S. efforts and faced persecution in their home country.

- Cuban-Haitian Adjustment (1986) (<https://www.uscis.gov/>) and (<https://www.congress.gov/>)

The Immigration Reform and Control Act of 1986 included provisions allowing Cuban and Haitian entrants who had arrived in the early 1980s to adjust their status to permanent residency. Initially granted parole status due to their sudden arrival, these refugees faced

prolonged legal uncertainty. The 1986 adjustment legislation, championed by Senator Alan Simpson (R-WY) and Representative Romano Mazzoli (D-KY) and supported by President Ronald Reagan, passed with strong bipartisan majorities (63-24 in the Senate, 238-173 in the House). This precedent specifically addressed refugees who had been "in parole/undocumented limbo," a situation similar to the current circumstances facing many Ukrainian families.

These historical precedents demonstrate that Congress has repeatedly recognized the need to provide stable solutions for refugees who cannot safely return to their countries of origin, regardless of their initial entry mechanism. **Each of these adjustment acts followed a similar pattern: initial arrival under temporary or parole authority, extended stay due to ongoing country conditions, and eventual congressional action to provide legal stability.**

Recognizing this established pattern, the Ukrainian Adjustment Act has already been introduced in Congress, following the same proven legislative framework that successfully resolved similar humanitarian crises in the past. This proposed legislation acknowledges that Ukrainians, like their historical counterparts, arrived under temporary emergency measures but now require more stable legal solutions due to the ongoing war and destruction in their homeland.

Congress has successfully addressed similar situations where people arrived under temporary or emergency measures but needed more stable legal solutions due to ongoing conditions in their home countries. Each of these adjustment acts resolved prolonged legal uncertainty for refugee populations who could not safely return home.

Thank you for your time and consideration of this critical matter. I respectfully request your support for a legislative solution that would provide stability to those experiencing processing delays and losing lawful status through no fault of their own. Should you need any additional information or clarification regarding the extensive evidence presented in this document, please do not hesitate to contact me. I would be grateful to know your position on this matter and any steps you might consider taking to address this urgent situation.